

Jyoti Kandhari v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 2 November 2023 · 2023:AHC-LKO:71937-DB · Writ - C No. 9606 of 2023 · **Connection within two weeks of Annexure 4.2 indemnity**

HEADNOTE

A later ownership suit by the licensee, pending without an interim order after the licensee lost an earlier suit by the applicant, is no reason to refuse supply. On an Annexure 4.2 indemnity the Executive Engineer must give the connection within two weeks; the parties remain bound by the civil court's orders.

FACTUAL SUMMARY

Jyoti Kandhari sought an electricity connection for a shop at 4, Shivam Nagar, part of Khasra No. 2319, village Kanausi, Lucknow, from U.P. Power Corporation Ltd. and LESA. The respondents did not release the connection. Their counsel told the Court that ownership of the premises was in dispute between her and the Corporation. The Corporation had lost a suit she had filed. It had then instituted another suit, which was still pending, and no interim order had been made in that suit.

REUSABLE CONSTRUCTIONS

1. A later ownership suit by the licensee, pending without an interim order after the licensee has lost an earlier suit by the applicant, is no reason to refuse an electricity connection. ¶ 1-2
2. An applicant in a live title dispute may be connected on an Annexure 4.2 indemnity, and the licensee must provide the connection within two weeks of that bond, subject to the civil court's eventual decree. ¶ 1-2

HOLDING-UNITS

HOLDING-UNIT · UP-2005::Annexure 4.2

connection on indemnity despite pending title suit

HOLDING

Where the licensee has lost an earlier suit by the applicant and a later ownership suit by the licensee is pending without any interim order, there is no reason to refuse the electricity connection. The applicant may furnish an indemnity bond under Annexure 4.2 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, EUDD-Kanpur Road, LESA, Lucknow, and on that bond the connection shall be provided within two weeks. The parties remain bound by the orders and judgments in the pending suit. ¶ 1-2

PRINCIPLE TAGS

occupier-entitled-to-connection-on-indemnity-bond-annexure-4.2 Ownership remaining in dispute in a pending suit, without an interim order and after the licensee had lost an earlier suit, did not justify refusal. The applicant was permitted to furnish the Annexure 4.2 indemnity, on which the Executive Engineer was directed to give the connection within two weeks. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — TITLE TO THE SHOP AND THE RESULT OF THE OWNERSHIP SUIT PENDING BETWEEN THE PETITIONER AND THE CORPORATION

The writ court did not decide ownership. It recorded that the parties remain bound by the orders and judgments in that suit. ¶ 1-2

